

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

**COMPLAINANT CHINA UNITED LINES, LTD.'S MOTION FOR RULING ON
PENDING MOTIONS TO COMPEL**

I. INTRODUCTION AND SUMMARY OF MOTION

Complainant China United Lines, Ltd. (“China United”) hereby submits this Motion for Ruling on Pending Motions to Compel (the “Motion”) **respectfully requesting rulings on Docket Entry Nos. 56, 61 and 63 (the “Motions to Compel”) on or before April 3, 2026 in light of the now-set June 15, 2026 trial of the related matter between China United and Amazon pending in the Southern District of New York, Case No. 23-Civ.-10213 (PKC) (the "SDNY Case").** While the claims in the SDNY Case are different from this matter, the underlying facts are largely the same. Good cause exists for the requested relief herein given the impending trial date in the

SDNY Case (**including the April 30, 2026 trial brief deadline therein**), the overlapping evidentiary issues between the proceedings, and the need for efficient resolution of key factual matters. Importantly, the Motions to Compel were not concurrently filed in the SDNY Case because the parties stipulated to the presentation of documents, interchangeably, in both the FMC matter and the SDNY Case.

Pursuant to 46 C.F.R. Section 502.71, the Parties have met and conferred regarding this Motion. Amazon has indicated that it is opposed the relief requested.

II. ARGUMENT

46 C.F.R. Section 502.25 provides the Presiding Officer broad authority to regulate the course of proceedings, hear and rule on motions, and set schedules for filings. The Presiding Officer is further empowered to issue orders necessary for the efficient administration of the case and to resolve discovery disputes. *See* 46 C.F.R. § 502.25. Good cause exists for the relief requested herein.

China United's three motions to compel discovery from Respondent Amazon.com Services, LLC, Amazon Logistics, Inc., and Beijing Century Joyo Courier Service Co., Ltd. ("Amazon"), docketed at Entries Nos. 56, 61, and 63, are currently pending before the Presiding Officer. **These motions seek testimony and documents which bear directly upon key issues in this case and in the parties' related New York proceeding. These motions were filed in this FMC matter alone, to prevent duplication of discovery and discovery motions (and because China United believed that this FMC matter would be the quickest matter to reach an ultimate result).** As the parties have informed the Presiding Officer, this FMC proceeding runs alongside the SDNY Case. The parties have agreed that documents/testimony are presentable between proceedings, and China United has tailored its requests for discovery (both written and

testimonial) to align with its obligations before the FMC and SDNY. Until now, China United has had no cause for concern regarding when the FMC Motions to Compel would be ruled upon.

However, on March 10, 2026 (three days before the filing of this motion), trial in the SDNY Case was set for June 15, 2026.¹ China United must file its trial brief by April 30, 2026 and, necessarily, compile all evidence it will rely on by the same date. China United's Motions to Compel seek evidence plainly relevant (and admissible) in the SDNY Case, but China United is now concerned that the Presiding Officer may not have the opportunity to rule on them before China United's deadline to submit evidence in the SDNY Case (April 30, 2026).

As explained more fully in the Motions to Compel, China United seeks testimony and documents relevant to Amazon's termination of China United's Service Contract "for cause." In the SDNY Case, Amazon asserts China United violated Subsections 7.1–7.2 of the parties' Main Transportation Agreement (the "MTA") and Sections 3, 6 and 7 of the parties' Non-Disclosure Agreement (the "NDA") when it re-shared content on WeChat regarding the Parties' relationship (which Amazon had made public more than a month prior). The parties presently dispute the meaning of these provisions, and ultimately, Amazon's right to terminate "for cause." China United alleges that the NDA's definition of "Confidential Information" (*i.e.* information which has not been made public) must be read into Subsections 7.1 and 7.2 of the MTA, because the subsections incorporate the NDA by reference, and fall under the heading "Confidentiality." China United further alleges that because Amazon publicized the parties' relationship first, the Amazon-China United relationship could not be considered "Confidential Information," so Amazon's termination for cause for violating the MTA and NDA was a farce. Amazon, of course, disagrees.

¹ China United had previously maintained every reasonable expectation that trial would not be set until a much later date.

Regardless of Amazon's position, Amazon's interpretation of these provisions (and the documents and testimony which support them which China United has moved to compel in the pending Motions to Compel) are critical to both China United's 46 U.S.C. Section 1102(a) claim, currently before the Presiding Officer, and China United's breach of contract claims, currently before the Honorable Kevin Castel, in the SDNY Case.

First, Docket Entry No. 56 seeks corporate testimony regarding Amazon's policies regarding the use of its name, as well as whether it has terminated any other carrier "for cause" for use of its name. Likewise, Docket Entry No. 61 seeks documents regarding Amazon's inclusion of termination "for cause" provisions in its service contracts generally and whether Amazon has terminated any other carrier "for cause" for using its name. This evidence is particularly important to China United's SDNY Case, and China United would be severely prejudiced should it be unable to use this information in the SDNY Case, because China United is aware of another carrier who used Amazon's name, ZIM, without being terminated "for cause." Amazon's policies regarding the use of its name (internally and by other carriers), coupled with testimonial and documentary evidence on Amazon's "for cause" terminations, will reveal the type of conduct Amazon deems violative, and clarify Amazon's interpretation of the name-use prohibitions in the MTA and NDA. This evidence is essential to China United's claims for breach of contract and its other arguments including waiver, election of remedies, estoppel, and breach of the covenant of good faith and fair dealing.

Second, Docket Entry No. 63 requests that Amazon produce scores of documents improperly withheld as privileged, directly related to Amazon's decision to terminate "for cause." Amazon's corporate representative testified that the decision to terminate "for cause" was a

“business decision”—not a legal decision.² Yet Amazon has shrouded nearly all documents related to this decision – and the related investigation into China United’s supposedly violative WeChat post – in attorney-client privilege. Numerous entries in Amazon’s privilege log identify documents which should have been produced. For example, multiple entries refer to documents authored by and circulated amongst non-attorneys without any showing that they were primarily created to obtain legal advice. Moreover, Amazon has already been sanctioned for its privilege abuses by another tribunal, just eight months ago.³ The Western District of Washington found that Amazon executives instructed Amazon employees to flag business conversations “P&C” and to be “diligent” about “marking emails and docs” in an attempt to avoid the ultimate production of relevant documents.⁴ To the extent Amazon has engaged in such conduct here, Amazon should not be rewarded. China United would be severely prejudiced should it be unable to use the compelled documents in the SDNY Case.

Third, the documents sought by Docket Entry No. 63 will reveal what about China United’s conduct Amazon deems to violate the MTA and NDA and why Amazon determined it was entitled to terminate “for cause.” As a result, these documents bear directly on Amazon’s interpretation of the relevant provisions in the MTA and NDA and are thus essential to China Amazon’s claims in this and the SDNY Case.

² Cardadeiro Tr. 48:24-49:8.

³ *Federal Trade Comm’n v. Amazon.com, Inc.*, No. 2:23-cv-00932-JHC, 2025 WL 1907413 (W.D. Wash. July 10, 2025) (Order Supplementing the Court’s June 23 Sanctions Order at 5-6)

⁴ *Id.* at 3.

Therefore, good cause exists for the pending Motions to Compel to be ruled upon by the Presiding Officer by April 6, 2026 because China United would be severely prejudiced should it be unable to use the compelled information in the SDNY Case.

III. CONCLUSION

As the information sought in the Motions to Compel is critical this matter and the SDNY Case, China United respectfully requests that the Presiding Officer issue rulings on Docket Entries Nos. 56, 61, and 63 on or before **April 3, 2026**. China United further requests that the Presiding Officer issue an order compelling Amazon to provide responsive documents and testimony no later than **April 17, 2026**. By ruling on this timeline, the Presiding Officer would provide China United sufficient time to incorporate responsive evidence into its trial brief in the SDNY Case, by the deadline of **April 30, 2026**. China United recognizes that the Presiding Officer is not obligated to rule on its motions to compel based on the timeline set by a parallel proceeding; however, by ruling on this basis, the Presiding Officer will increase efficiency between the proceedings, allow the evidence developed to be effectively utilized in both proceedings, and importantly, prevent China United from experiencing prejudice from being unable to potentially use discovery in the SDNY Case.

WHEREFORE, Claimant China United Lines, Ltd. respectfully requests that the Presiding Officer grant the Motion and rule on the pending Motions to Compel by April 3, 2026.

///

///

///

///

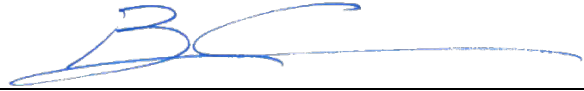
///

///

Dated: March 13, 2026

Respectfully submitted,

THEODORA ORINGHER PC



BRYCE M. CULLINANE

CASB No. 307079

bcullinane@tocounsel.com

535 Anton Boulevard, Ninth Floor

Costa Mesa, California 92626-7109

Telephone: (714) 549-6200

Facsimile: (714) 549-6201

Attorneys for Complainant

China United Lines, Ltd.

PROOF OF SERVICE

I, Ileen Osorio, hereby certify that on this 13th day of March, 2026, a copy of the foregoing **Motion for Ruling on Pending Motions to Compel** was served via email, on the following:

Michael F. Scanlon
John Longstreth
Christiana K. Goff
K&L GATES LLP
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000
(202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
christi.goff@klgates.com

Counsel for Respondents



Ileen Osorio